

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:
Date Purchased:

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CHRISTOPHER PAGAN by his m/n/g LISA ORTIZ and
LISA ORTIZ, individually,

SUMMONS

Plaintiff designates
BRONX County as
the place of trial.

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER KEITH
AMES TAX ID NO. 929627, POLICE OFFICER GUSTAVO
MEDINA TAX ID NO. 942180 , and THE NEW YORK CITY
POLICE DEPARTMENT

The basis of venue is:
Location of Occurrence,
pursuant to CPLR §504(3)

Defendants.
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Action arose in the
County of Bronx

To the above named Defendant:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
October 23, 2013



Alex Rybakov, Esq.
LAW OFFICES OF MICHAEL S. LAMONSOFF, PLLC
Attorneys for Plaintiff
80 Maiden Lane
New York, N.Y. 10038
(212) 962-1020
Our File No. 12746

TO: THE CITY OF NEW YORK
100 Church Street
New York, NY 10006

POLICE OFFICER KEITH AMES TAX ID NO.929627
100 Church Street
New York, New York 10006

POLICE OFFICER GUSTAVO MEDINA TAX ID NO.942180
100 Church Street
New York, New York 10006

NEW YORK CITY POLICE DEPARTMENT
100 Church Street
New York, New York 10006

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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CHRISTOPHER PAGAN by his m/n/g LISA ORTIZ, and
LISA ORTIZ, individually,

Plaintiff,

-against-

Index No.:

THE CITY OF NEW YORK, POLICE OFFICER KEITH
AMES TAX ID NO. 929627, POLICE OFFICER GUSTAVO
MEDINA TAX ID NO. 942180 , and THE NEW YORK CITY
POLICE DEPARTMENT,

COMPLAINT

Defendants.
-----X

Plaintiff, by his attorney, the LAW OFFICES OF MICHAEL S. LAMONSOFF, complaining
of the defendants, respectfully allege, upon information and belief, the following:

1. At all times hereinafter mentioned, plaintiff CHRITOPHER PAGAN by
his m/n/g LISA ORTIZ was a resident of the County of the Bronx, City and State of New
York.
2. That the cause of action alleged herein arose in the County of Bronx, City and State of
New York.
3. That on November 9, 2012 and at all times hereinafter mentioned, defendant, THE CITY
OF NEW YORK was and still is a municipal corporation, duly organized and existing
under the laws of the State of New York.
4. That at all times hereinafter mentioned, Defendant THE CITY OF NEW YORK was and
still is, a municipal entity existing under and by virtue of the laws of the State of New
York.
5. That at all times hereinafter mentioned, the defendant THE CITY OF NEW YORK,

owned operated and controlled a police department known as the defendant, NEW YORK CITY POLICE DEPARTMENT.

6. That at all times hereinafter mentioned, the defendant POLICE OFFICER KEITH AMES TAX ID NO. 929627, was employed by the defendant THE CITY OF NEW YORK to work as a police officer for the defendant THE NEW YORK CITY POLICE DEPARTMENT.
7. That at all times hereinafter mentioned, the defendant POLICE OFFICER GUSTAVO MEDINA TAX ID NO. 942180 was employed by the defendant THE CITY OF NEW YORK to work as a police officer for the defendant THE NEW YORK CITY POLICE DEPARTMENT.
8. That prior hereto, on December 31, 2012, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with Plaintiff's demands for adjustment thereof, was duly served on the Plaintiff's behalf on defendant THE CITY OF NEW YORK and that, thereafter, said Defendant refused or neglected for more than thirty (30) days, and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.
9. That a hearing pursuant to General Municipal Law 50-h was waived pursuant to a stipulation by an between the parties herein this matter.
10. That more than ninety (90) days have elapsed from the presentation of Notices of Claim to the remaining defendants and that said defendants have failed to demand and/or conduct a hearing pursuant to the General Municipal Law.

11. That this action is being commenced within one year and ninety days after accrual of this cause of action, or within the time allowed by law.
12. That at all times hereinafter mentioned, defendant POLICE OFFICER KEITH AMES TAX ID NO. 929627 was acting in the scope of his employment as police officer for the defendant THE CITY OF NEW YORK
13. That at all times hereinafter mentioned, defendant POLICE OFFICER GUSTAVO MEDINA TAX ID NO. 942180, was acting in the scope of his employment as police officer for the defendant THE CITY OF NEW YORK.
14. Upon information and belief that at all times herein mentioned, POLICE OFFICER KEITH AMES TAX ID NO. 929627 was a police officer employed by defendant THE CITY OF NEW YORK attached and/or assigned to the 40th precinct in the County of Bronx, City and State of New York.
15. Upon information and belief that at all times herein mentioned, POLICE OFFICER GUSTAVO MEDINA TAX ID NO. 942180 was a police officer employed by defendant THE CITY OF NEW YORK attached and/or assigned to the 40th precinct in the County of County of Bronx, City and State of New York
16. That at all times hereinafter mentioned, defendant, POLICE OFFICER KEITH AMES TAX ID NO. 929627 is a person who at the time and place herein mentioned, was a police officer employed by the defendant, THE CITY OF NEW YORK in the performance of his duty and authority.
17. That at all times hereinafter mentioned, defendant, POLICE OFFICER GUSTAVO MEDINA TAX ID NO. 942180 is a person who at the time and place herein mentioned, was a police officer employed by the defendant, THE CITY OF NEW YORK in the

performance of his duty and authority.

18. Upon information and belief that at the times herein mentioned the defendant, THE CITY OF NEW YORK, its agents, servants and/or employees operated, maintained and controlled the aforementioned police officers.
19. That on November 9, 2012, defendants POLICE OFFICER KEITH AMES TAX ID NO. 929627, POLICE OFFICER GUSTAVO MEDINA TAX ID NO. 942180, were on duty and were acting within the scope of their authority as a police officers for the defendant THE CITY OF NEW YORK.
20. That on or about November 9, 2012, plaintiff, CHRISTOPHER PAGAN was arrested at 346 East 156th Street, in the County of Bronx, City and State of New York, and continuing thereafter in and at the 40th precinct and thereafter in and at central bookings.
21. That by reason of the foregoing, on or about November 9, 2012 the defendants, without just or probable cause, unlawfully and maliciously arrested, harassed, imprisoned and prosecuted the plaintiff.
22. As a result of the foregoing, plaintiff was caused to sustain damage and injury, including, but not limited to deprivation of liberty, physical and mental suffering, indignity, humiliation, shame and disgrace, and was to expend sums for legal services and other expenses.
23. That all of the foregoing occurred solely as a result of the carelessness, recklessness, culpable conduct and negligence of the defendants in failing to properly hire and train its police officers; in that they failed to properly monitor, supervise and control the activities of their police officers and more specifically the police officers named herein; in inadequately and improperly supervising and controlling the activities of their police

officers and more specifically the police officers named herein; in failing to employ competent personnel; in violating the applicable rules, statutes and ordinances which govern the activities of the defendants, its agents and/or employees and in otherwise being negligent.

24. In doing all the acts and things aforesaid, defendants acted willfully and maliciously. In doing all the acts and things aforesaid, defendants acted negligently in failing to use such care in the performance of police duties as reasonable, prudent and careful police officers would have used under similar circumstances.

25. In doing all the acts and things aforesaid, defendant THE CITY OF NEW YORK their agents, servants and/or employees, acted negligently in failing to properly hire and train its police officers.

26. As a result thereof, plaintiff was damaged in a sum far in excess of the jurisdictional limits of this court pursuant to CPLR 3017(c).

**AS AND FOR THE SECOND CAUSE OF ACTIONS AGAINST POLICE OFFICER
KEITH AMES BADGE # 00413, POLICE OFFICER GUSTAVO MEDINA BADGE #
7977 FOR VIOLATION OF 42 USC 1983**

27. Plaintiff, repeats, reiterates, and re-alleges each and every paragraph of this complaint numbered "1" through "35", with the same force and effect as if more full- set forth herein at length.

28. In detaining and arresting plaintiff without legally sufficient evidence and/or probable cause defendants violated plaintiff's constitutional rights under the 4th, 5th and 14th

amendments of the Constitution of the United States of America.

29. That the acts and conduct constituting the assault and battery consisted in part of the following: violently threatening Plaintiff with physical harm; intentionally attempting to cause injury to Plaintiff; a vicious assault and battery against Plaintiff, placing Plaintiff in handcuffs without reason or cause; using unreasonable, unnecessary and excessive force against Plaintiff; exercising unreasonable, unnecessary and excessive force during the course of an investigation; committing an unjustified arrest of Plaintiff; carelessly employing the use of force in arresting Plaintiff; committing a harmful, offensive and unconsented attack upon Plaintiff's person; acting outside the scope and authority of prescribed powers and duties; unlawfully interfering with Plaintiff's right to conduct his usual business; and otherwise using great and threatening force and violence against Plaintiff.
30. That the willful disregard of plaintiff's constitutional rights and the defendant's violation of 42 USC 1983, as hereinbefore alleged, was the result of the defendant's direct participation in the acts hereinbefore alleged.
31. That the willful disregard of plaintiffs constitutional rights and the defendant's violation of 42 USC 1983 as hereinbefore alleged occurred by reason of the defendant's failure to cease the arrest and detention of plaintiff after defendant knew or should have known that there was not sufficient evidence and or probable cause to proceed with the arrest and detention of plaintiff.
32. As a result thereof, plaintiff was damaged in a sum far in excess of the jurisdictional limits of this court pursuant to CPLR 3017.
33. As result thereof plaintiff is entitled to recover such amount as and for attorneys fees as to

the court may deem reasonable.

WHEREFORE, Plaintiff demands judgment against the Defendants herein on all causes of action, in a sum exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with the costs and disbursements of this action.

Dated: New York, New York
October 23, 2013

Yours, etc.



ALEX RYBAKOV, ESQ
LAW OFFICES OF MICHAEL S. LAMONSOFF, PLLC
Attorneys for Plaintiff
80 Maiden Lane, 12th Floor
New York, New York 10038
(212) 962-1020

ATTORNEY'S VERIFICATION

ALEX RYBAKOV, ESQ an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at LAW OFFICES OF MICHAEL S. LAMONSOFF, PLLC, attorneys of record for Plaintiff CHRISTOPHER PAGAN by his m/n/g. I have read the annexed **SUMMONS AND VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiff is not presently in the county wherein I maintain my offices.

DATED: New York, New York
 October 23, 2013



ALEX RYBAKOV, ESQ

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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Plaintiff,

-against-

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AMES TAX ID NO. 929627, POLICE OFFICER GUSTAVO MEDINA TAX ID NO. 942180 ,
and THE NEW YORK CITY POLICE DEPARTMENT,

Defendant

SUMMONS AND VERIFIED COMPLAINT

LAW OFFICES OF MICHAEL S. LAMONSOFF, PLLC

Attorneys for Plaintiff

80 Maiden Lane, 12th Floor

New York, New York 10038

(212) 962-1020

Pursuant to 22NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of the State of New York, certifies, that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

ALEX RYBAKOV, ESQ.